

Constitutional Law 178

Separation of Powers

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Chair in Urban Law and Sustainability



Structure: Separation of Powers

- 1. Introduction**
- 2. Concepts & principles**
- 3. Historical context**
- 4. Application in South Africa**
- 5. Counter-majoritarian dilemma & deference**
- 6. Conclusion**
- 7. Class activity**

1. Introduction

- Our focus is on:
 - Analysing the model of separation of powers
 - Understanding the principles, concepts and historical context
 - Applying it in the South African context
 - Discussing the issues and consequences
- Constitutional context + **transformative constitutionalism**
 - **Accountability** (s 1 d)
 - **Constitutional supremacy** (s 2)
- Don't get bogged down in the detail
- Practical application exercise at the end



2. Concepts & principles

- **Constitutions as limiting public power/state coercion**
 - Other functions too, of course
 - Human rights to individuals and groups (Ss 9 - 35)
 - Guiding judicial decision making (s 39)
 - Administrative make-up of the state (e.g. Schedules 4 and 5)
- **Substantive and procedural ways to limit state power**
 - **Rights = Substantive**
 - Examples?



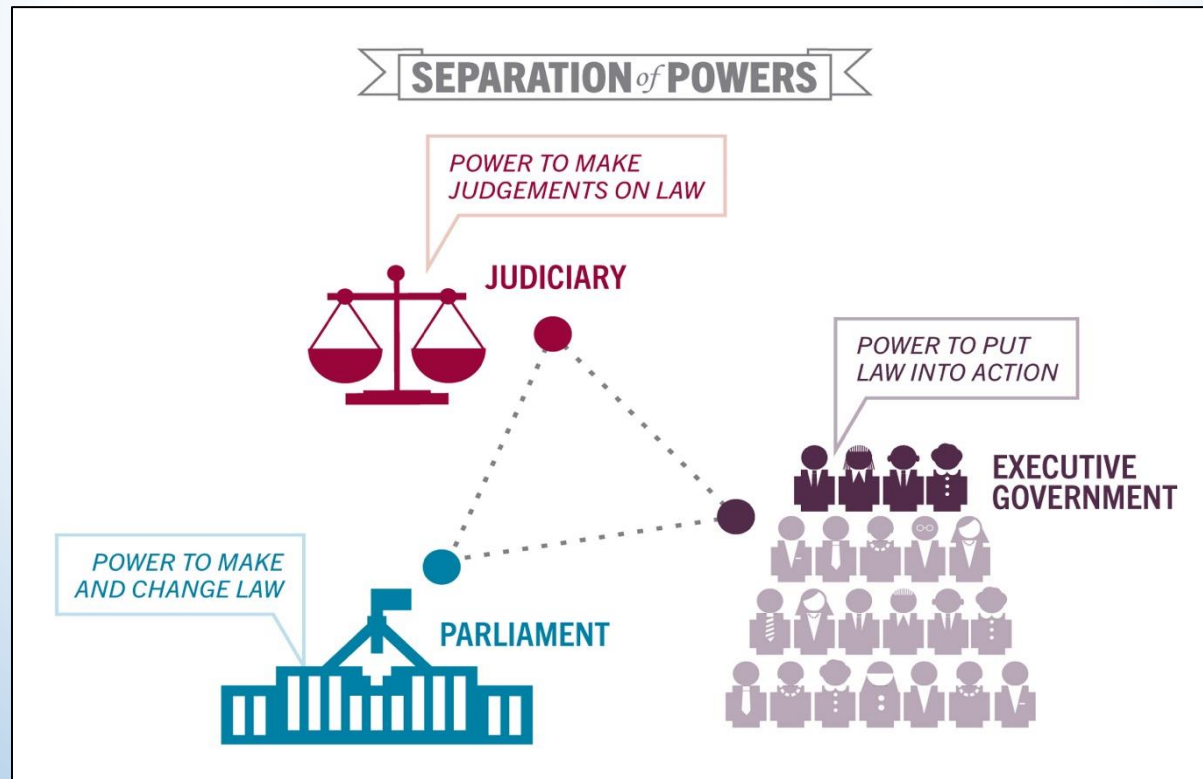
2. Concepts & principles

- **Procedural limits to public power**
 - Ways/Manners in which government exercises public power
- **Separation of powers = Procedural**
 - Divides government into 3 branches
 - 1.) Executive
 - 2.) Legislature
 - 3.) Judiciary
 - *not a hierarchy



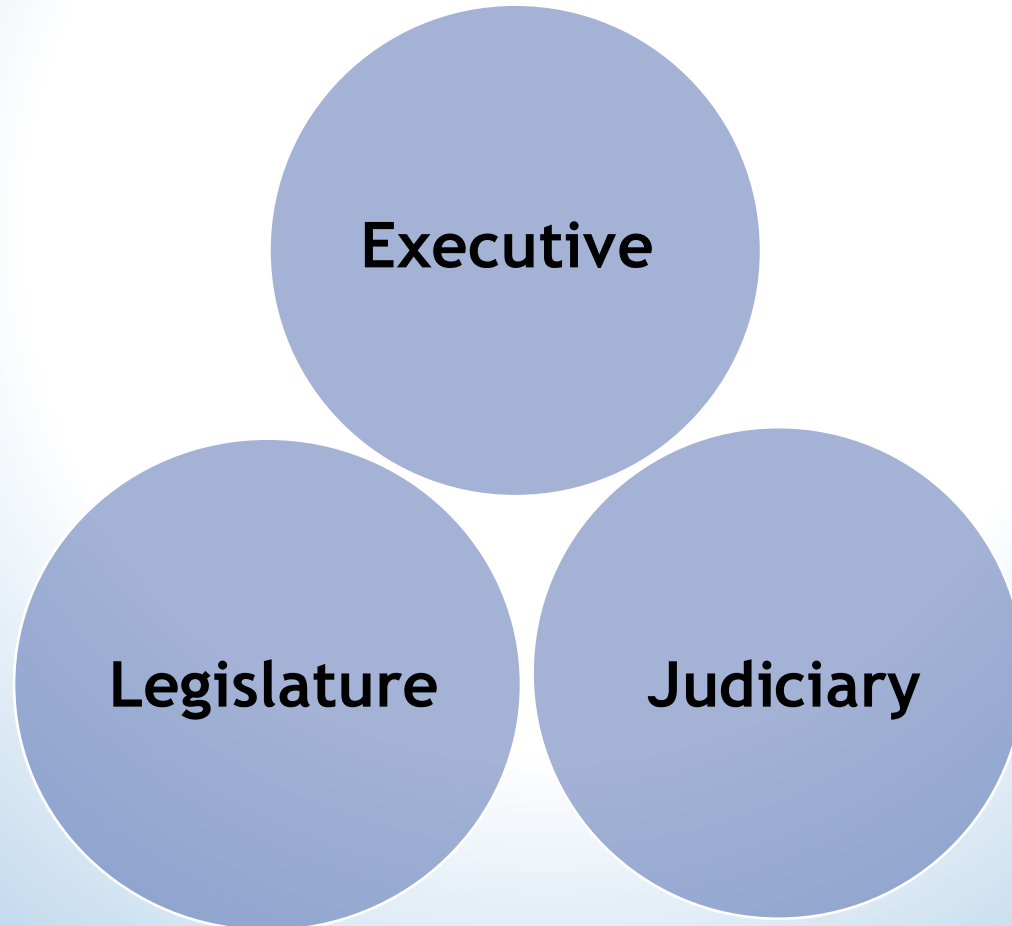
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2. Concepts & principles

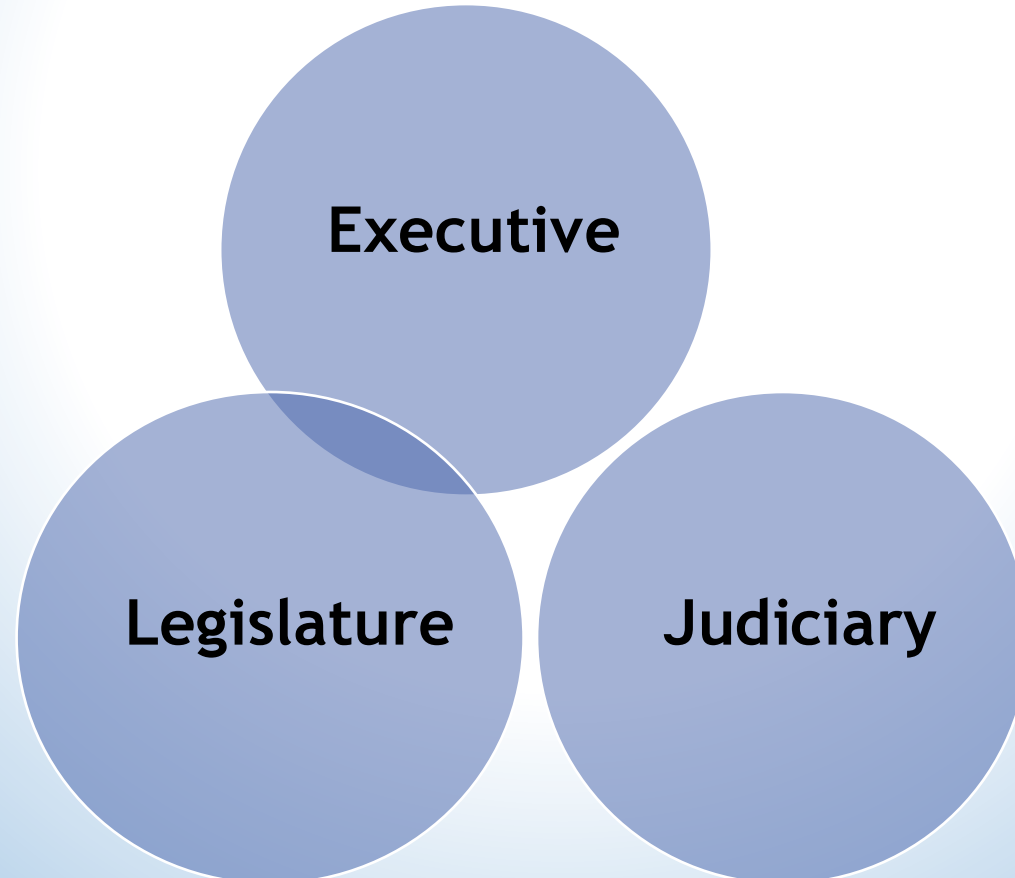
- **Separation of powers**
 - Divides government into 3 branches → 'Classical Model'



2. Concepts & principles

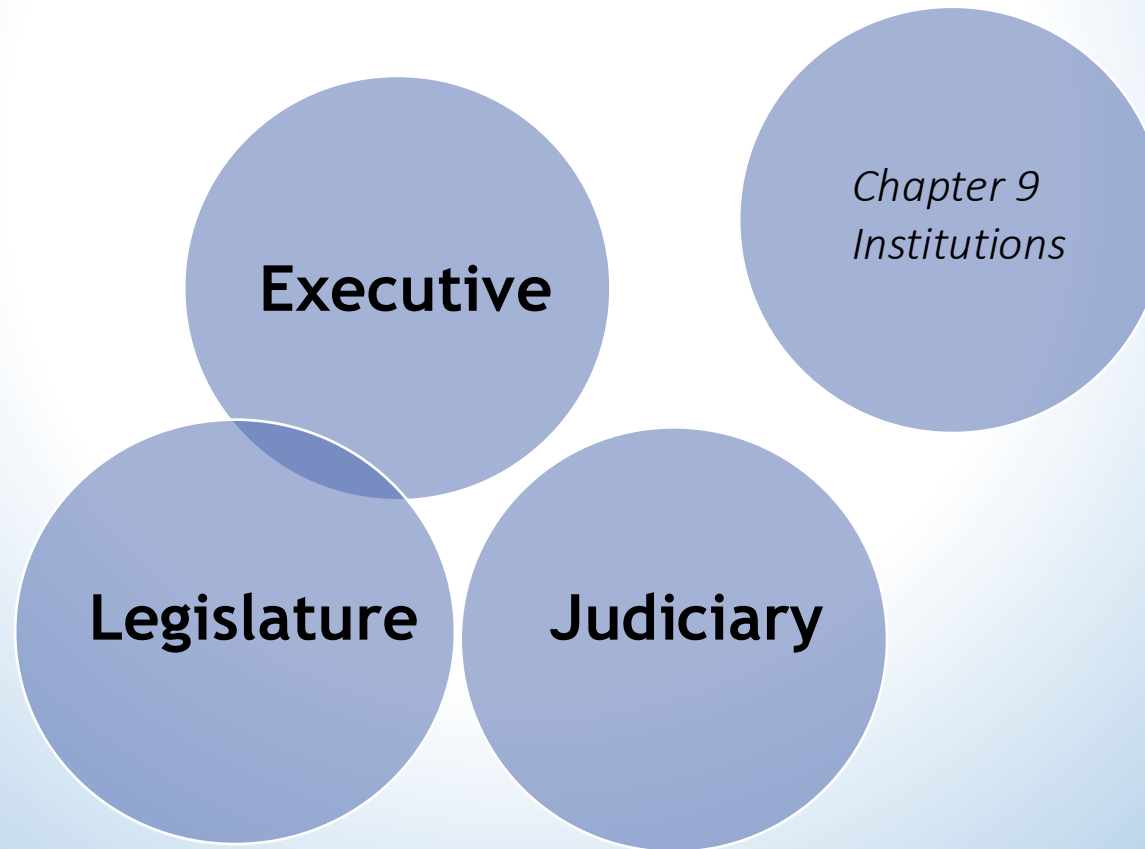
- **Separation of powers**

- Divides government into 3 branches → But also **overlaps** = South Africa
- Why no overlap with the **judiciary**? Protect **judicial independence**



2. Concepts & principles

- **Separation of powers**
 - Divides government into 3 branches → But also **overlaps** = South Africa

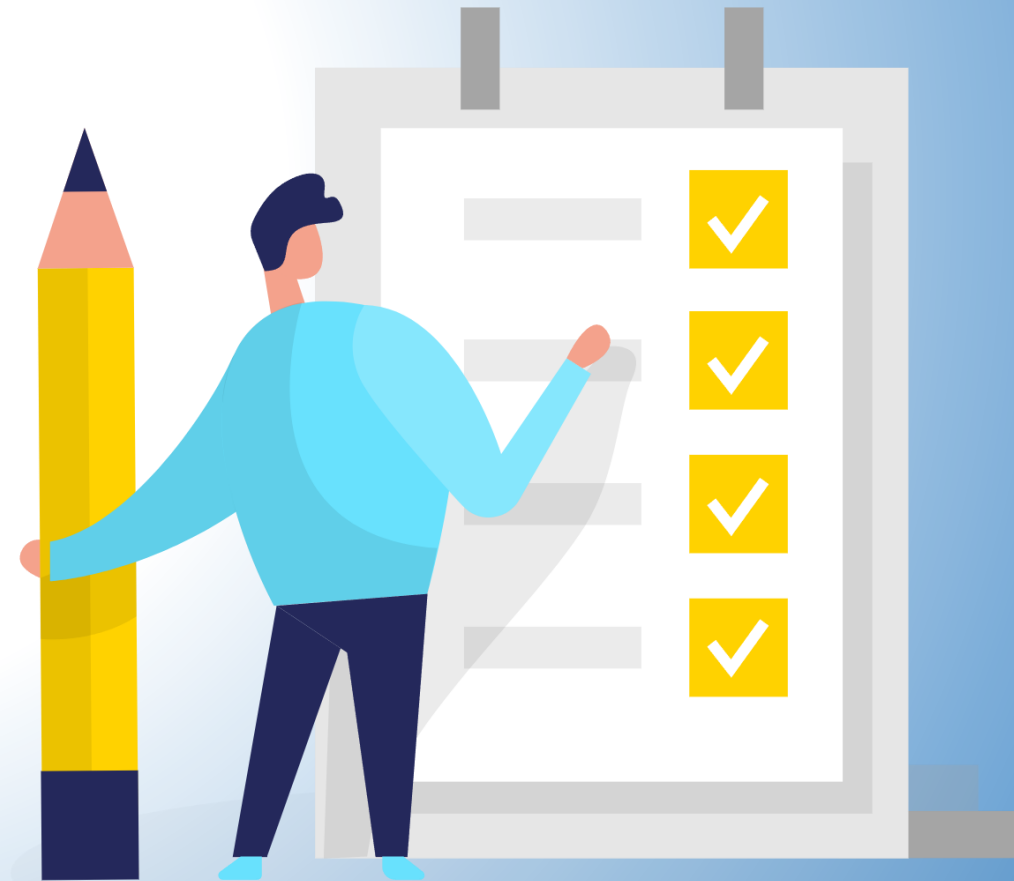


2. Concepts & principles

- **Separation of powers**
 - Avoids concentration of power
 - E.g. Executive takes on law-making power
 - Promotes specialisation
 - E.g. Qualified and trained judges
- Modern conceptions closely interlinked with human rights
 - Procedural ↔ Substantive

2. Concepts & principles

- **Four principles**
 - 1.) Division of government power
 - 2.) Separation of functions
 - 3.) Separation of personnel
 - 4.) System of checks and balances



3. Historical background

- Origins in 17th Century enlightenment political philosophy
 - **though perhaps an oversimplification*
 - Development from **Hobbes**, to **Locke**
 - To **Charles Badron de Montestuiieu**, to **Jean Jacques Rosseau**, and **USA**
 - Specific histories of monarchical and tyrannical governments
 - Rise of **liberalism** and **negative conceptions** of freedom
 - Rise of constitutionalism
- In principle the same, but **incremental** developments
 - E.g. overlaps; new public institutions (*see Ch 9 institutions)

3. Historical background

- Why is historical background important?



4. Application in South Africa

- No express mention in Final Constitution
 - Constitutional Principle VI from Interim Constitution
 - Constitutional Court = Implicit in Final Constitution
- South African model
 - PoD: No universal model
 - Historical understanding and appreciation
 - E.g. Westminster system & parliamentary sovereignty in apartheid era
 - CC in *De Lange v Smuts*

4. Application in South Africa

- Legislature
 - Chapter 4 of Constitution
 - National Assembly (NA) & National Council of Provinces



4. Application in South Africa

- Legislature
 - Overlap with executive **rationale** = Policy power to legislation
 - Inherited from Westminster system
- *Executive Council of Western Cape Legislature v President of the Republic of South Africa*
 - **Delegation** of law making authority
 - Permissible (to some degree)
 - Limitations to nature + extent
 - But specialisation, democracy, and concentration of power?

4. Application in South Africa

- **Legislature**
 - **Chapter 4 of Constitution**
 - National Assembly (NA) & National Council of Provinces
 - Members of Parliament
 - Overlap with executive = Policy power to legislation
- *Executive Council of Western Cape Legislature v President of the Republic of South Africa*
 - **Delegation** of law-making authority
 - Permissible (to some degree)
 - Limitations to nature + extent
 - But specialisation, democracy, and concentration of power?

4. Application in South Africa

- Executive
 - Ss 84 and 85 of Constitution
 - **Cabinet** composition of Ministers
 - **Obligation** to select cabinet from NA
 - Commissions of enquiry
- NA exercises oversight
 - Can **recall** executive
 - Initiate **votes of no confidence** (impeachment, s 89)
 - Accountability to NA - s 55(2) of Constitution
 - Oversight of the executive and hold it accountable, particularly in the **implementation** of legislation

4. Application in South Africa

- Judiciary
 - Chapter 8 of Constitution
 - **Hierarchy** of courts
 - **Appointment** of judges - Judicial Services Commission
 - Manner of appointment involves all 3 branches
 - Ensures (or is supposed to) **impartiality** and independence



4. Application in South Africa

- Judicial review
 - S 172 provides for **competent** courts to **declare that any law inconsistent** with the Constitution is **invalid** to the extent of its decision whether an Act of Parliament, a provincial Act or conduct of the President is constitutional (section 167(5))
 - Certain principles in the Constitution to limit litigation of legislature and executive against one another



4. Application in South Africa

- **Judicial independence and impartiality**
 - CC confirmation in *SA Association of Personal Injury Lawyers v Heath*
 - JSC code of conduct and removals
 - Power to initiate proceedings for the removal of judges via the JSC (and involvement of 3 branches)
 - Only possible on limited grounds of **incapacity, gross incompetence or gross misconduct**
 - E.g. Removal of J Hlope by Pres Ramaphosa

4. Application in South Africa

- Chapter 9 Institutions
 - Unique set of institutions that do **not fall within classic model**
 - *E.g. Public Protector; South African Human Rights Commission*
 - Also exercise oversight
 - But due to falling **outside** 3 branches, in unique position
 - **Independence** and introduces **another layer of checks and balances**
 - Problems? Critiques?